

25STCV38192 25STCV38192

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Case Number: 25STCV38192 Hearing Date: August 6, 2026 Dept: 732

Lazzaro v. Westdetail LLC, et al.

Thursday, August 6, 2026

CASE NUMBER: 25STCV38192

OPPOSED

Motions to Compel

Further Responses to Discovery Responses

Facts:

Plaintiff

Mariano Lazzaro ("Plaintiff") alleges that he was a Detailer/General Labor employee at Defendant Westdetail LLC's ("Defendant") primary location at 16721 Ventura Boulevard, Encino, CA and secondary location at 23355 Valencia Boulevard, Santa Clarita. (Compl., ¶10.) Plaintiff experienced disparate treatment due to his ethnicity and retaliation after making complaints about safety violations, working conditions, and coworker performance. (Id., ¶¶12-13.)

Procedural

History:

On

December 29, 2025, Plaintiff filed the operative Complaint against Defendant and DOES 1 through 10, alleging nineteen causes of action related to wage and hour claims; FEHA claims; and common law claims.

On

March 20, 2026, Defendant filed an Answer to the Complaint.

On

June 9, 2026, Plaintiff filed the instant Motions to Compel Further Responses to Form Interrogatories – General (Set One) and Special Interrogatories (Set One). On July 24, 2026, Defendant filed an Opposition. On July 30, 2026, Plaintiff filed a Reply.

Analysis:

I.

MOTION TO
COMPEL FURTHER

Parties may move for a further response to interrogatories, requests for production of documents, and requests for admissions where an answer to the requests are evasive or incomplete or where an objection is without merit or too general. (Code Civ. Proc., §§ 2030.300, subd. (a); 2031.310, subd. (a).)

Notice of the motions must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c).)

Finally, California

Rules of Court, Rule 3.1345 requires that all motions or responses involving further discovery contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules Ct., Rule 3.1345, subd. (a)(3).) 22

II.

MEET AND

CONFER

The Civil Discovery

Act requires a moving party to attest to a good faith meet and confer effort as described in Code of Civil Procedure section 2016.040 before a motion to compel further discovery responses may be granted. (Code Civ. Proc., § 2030.300, subd. (b)(1); § 2031.310, subd. (b)(2).) Specifically, “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).) “[A]ttempting informal resolution means more than the mere attempt by the discovery proponent ‘to persuade the objector of the error of his ways’ and ‘a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

Here, Plaintiff’s

counsel of record, Brendan Burton states that on March 23, 2026, she sent a meet and confer letter to Defendant’s counsel of record, Timothy P. Creyaufmiller, identifying deficiencies in Defendant’s discovery responses and providing a 21-day safe harbor period to correct them by April 13, 2026. (Burton FROG Decl., ¶6, Ex. D; see also Burton SROG Decl., ¶5.) Furthermore, Ms. Burton states that the deficiency of Form Interrogatory No. 12.1 was not addressed at the Informal Discovery Conference (“IDC”) and no supplemental responses to Special Interrogatories Nos. 1-34 have been provided. (Burton FROG Decl., ¶8; Burton SROG Decl., ¶7.) However, the meet and confer letter makes no reference to Form Interrogatory No. 12.1. (Id.) The IDC brief also failed to address any deficiency with Form Interrogatory No. 12.1. (Creyaufmiller Decl., ¶¶7-8, Ex. 3 at p. 3.) In fact, the Form Interrogatories are only briefly mentioned on page 2 of the IDC brief but no deficient responses are identified. (Id.) As such, contrary to Plaintiff’s representation, Plaintiff failed to properly meet and confer as to Form Interrogatory No. 12.1. Nonetheless, Defendant substantively opposes further response to Form Interrogatory No. 12.1.

III.

FORM

INTERROGATORIES

Plaintiff moves for
an order compelling Defendant to serve further response to Form Interrogatory ("FROG")
No. 12.1, which seeks the following information:

"State the name, ADDRESS, and telephone number of each individual:

(a) who witnessed the INCIDENT or the events occurring immediately before
or after the INCIDENT;

(b) who made any statement at the scene of the INCIDENT;

(c) who heard any statements made about the INCIDENT by any individual at
the scene; and

(d) who YOU OR ANYONE ACTING ON YOUR BEHALF claim has knowledge of the
INCIDENT (except for expert witnesses covered by Code of Civil Procedure
section 2034)."

Plaintiff contends
that Defendant's response to FROG No. 12.1 is incomplete and insufficient because it omits known witnesses with
knowledge of the "INCIDENT;" fails to provide the address or telephone number
of the two witnesses identified; and a "discovery continuing" reservation is
improper. (See Plf. Sep. Stmt. at 2:18-3:21.) In opposition, Defendant argues that the present
motions are untimely. However, Defendant fails to account for the IDC, which
was scheduled for and held on May 20, 2026. Likewise, Defendant merely argues
that it provided the information available at the time and Ms. Herrera's
information was provided in response to Interrogatory No. 1.1.

In order to be
code-compliant, "[¶](a) Each answer in a response to interrogatories shall be
as complete and straightforward as the information reasonably available to the
responding party permits. [¶](b) If an interrogatory cannot be answered
completely, it shall be answered to the extent possible. [¶](c) If the
responding party does not have personal knowledge sufficient to respond fully
to an interrogatory, that party shall so state, but shall make a reasonable and
good faith effort to obtain the information by inquiry to other natural persons
or organizations, except where the information is equally available to the
propounding party." (Code Civ. Proc., § 2030.220.)

Similarly, “[¶](a)

If only a part of an interrogatory is objectionable, the remainder of the interrogatory shall be answered. [¶](b) If an objection is made to an interrogatory or to a part of an interrogatory, the specific ground for the objection shall be set forth clearly in the response. If an objection is based on a claim of privilege, the particular privilege invoked shall be clearly stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.” (Code Civ. Proc., § 2030.240.)

Here, Defendant’s response to FROG No. 12.1 is incomplete and insufficient. Although Defendant contends it is only aware of Plaintiff and Ms. Herrera as witnesses to the “INCIDENT,” Defendant admits it has Ms. Herrera’s contact information. (Def. Sep. Stmt. at 4:21-26; Opp. at 5:23-6:3). Thus, Defendant was required to provide her name, address, and telephone number to completely answer Form Interrogatory No. 12.1.

Accordingly, the Court finds that Plaintiff has demonstrated that further response to Form Interrogatory No. 12.1 is warranted.

IV.

SPECIAL

INTERROGATORIES

Plaintiff also moves for an order compelling Defendant to serve further response to Special Interrogatory (“SROG”) Nos. 1-34. Plaintiff contends that further responses to the SROGs are warranted because Defendant merely served an identical, boilerplate objection to all 34 SROGs.

Here, SROG Nos. 1-8 seek the identity of decision-makers involved in Plaintiff’s alleged termination and the reasons therefor; SROG Nos. 9-14 seek representations made to Plaintiff regarding his rate of pay, onboarding, and classification as an independent contractor; SROG Nos. 15-18 seeks Plaintiff’s personnel file and documents related to the wage deduction applied to Plaintiff’s wages; SROG Nos. 19-22 seeks information regarding meal and rest break practices, work performed off the clock, and unreimbursed expenses; SROG Nos. 23-30 seek information

about the safety incident of November 4, 2025, complaints made by Plaintiff, and Defendant's response thereto; and SROG Nos. 31-34 seeks information pertaining to Plaintiff's exclusion from the company group chat, Plaintiff's removal from the timekeeping system, and the incident in which a manager demeaned Plaintiff when his payment card was declined during a required purchase. In response, Defendant stated as follows:

"WD objects to this Interrogatory on the grounds that the same violates Code of Civil Procedure Section 2030.060(d) in that the interrogatories must be full and complete within themselves and must not contain a preface or instructions outside the interrogatory itself. In the Interrogatories propounded by Plaintiff, all definitions are contained in the preface and are not included [within] the Interrogatories. Further the Preface contains superfluous instructions beyond the requirements of CCP Section 2030. Defendant shall respond to these interrogatories once the violation has been corrected. WD further objects to this Interrogatory on the grounds that the same violates the attorney client privilege and/or the attorney work product privilege."

"The rule that each specially prepared interrogatory must be 'full and complete' by itself (§ 2030.060, subd. (d)), together with the rule that '[n]o specially prepared interrogatory shall contain subparts, or a compound, conjunctive, or disjunctive question' (§ 2030.060, subd. (f)) 'prevent evasion of the statutory limit on the number of interrogatories that one party may propound to another.' " (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1287–1288.) As such, where the interrogatories are clear and concise, there is no violation of the presumptive numerical limitation set by statute. (Id. at 1287.) In this present case, the SROGs at issue are clear and concise. In fact, Defendant does not argue that it cannot provide an intelligible response to these interrogatories. Also, the interrogatories do not exceed the 35 special interrogatories limit.

As to the attorney-client privilege and/or attorney work-product privilege objection, "when a party asserts the attorney-client privilege, that party has the burden of showing the preliminary facts necessary to support the privilege." (Venture Law Group v. Superior Court (2004) 118 Cal.App.4th 96, 102.) "The party asserting the privilege need only present facts which 'support a prima facie claim of privilege.' " (OXY Resources California LLC v. Superior Court (2004) 115 Cal.App.4th 874, 894.) "After this burden is met, or where there is no dispute concerning the

preliminary facts, the burden shifts to the party opposing the privilege to show either the claimed privilege does not apply, an exception exists, or there has been an express or implied waiver."

(Venture Law Group, *supra*, 118 Cal.App.4th 102.) Here, Defendant has not provided any facts in its separate statement and/or opposition to support a *prima facie* claim of privilege. Moreover, Defendant did not provide a privilege log for the Court and/or Plaintiff to evaluate the merits of the privilege claim. (See Code Civ. Proc., § 2031.240, subd. (c)(1); *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1130.)

Accordingly, the Court finds that Plaintiff has also demonstrated that further responses to SROG Nos. 1-34 are warranted.

V.

SANCTIONS

The court must impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response unless it finds that the one subject to the sanctions acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2030.300, subd. (d).)

Plaintiff's counsel, Ms. Burton seeks \$1,725.00 for each motion (total: \$3,450.00) consisting of 6.0 hours on each motion for meet and confer efforts and preparing the motions including supporting papers at an hourly rate of \$575.00. (Burton FROG Decl., ¶9; see also Burton SROG Decl., ¶9.) However, the meet and confer efforts only involved the SROGs at issue, thus awarding time for meeting and conferring as to the Form Interrogatory No. 12.1 would be unjust. The Court will award (1) 1.5 hours for preparing the moving and supporting papers for the FROG motion and (2) 3.0 hours for meet and confer efforts, preparing the SROG motion, and preparing the SROG supporting papers, for a total of 4.5 hours at an hourly rate of \$575.00.

Therefore, Plaintiff is awarded monetary discovery sanctions in the reduced amount of \$2,587.50.

Superior Court of California

County of Los Angeles

Department 732

MARIANO LAZZARO, an individual,

Plaintiff,

v.

WESTDETAIL LLC, et al.

Defendant(s).

Case No.:

25STCV38192

Hearing Date: August 6, 2026

[TENTATIVE] RULING RE:

Plaintiff

Mariano Lazzaro's Motions to Compel Further Responses to Form Interrogatories
– General (Set One) and Special Interrogatories (Set One)

Plaintiff Mariano Lazzaro's Motions to Compel Further
Responses to Form Interrogatories – General (Set One) and Special
Interrogatories (Set One) are GRANTED. Discovery sanctions is awarded against
Defendant Westdetail LLC and its counsel in the amount of \$2,587.50.

Counsel for Plaintiff Mariano Lazzaro to
provide Notice.

Dated: August 6, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court